

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Timely Rehearing Petition

Filed July 2, 2026

The City of Norvale petitions for panel rehearing and rehearing en banc of the opinion and judgment entered June 18, 2026. This petition is filed within fourteen days and is timely under Federal Rule of Appellate Procedure 40. The City asks the panel to reverse the preliminary injunction or, at minimum, to vacate it while the district court enters a compliant order. If panel rehearing is denied, the City requests rehearing en banc on the tailoring and remedial questions stated here.

The opinion exercised jurisdiction under 28 U.S.C. § 1292(a)(1), rejected dismissal of the recurring-events controversy as moot, affirmed the Guild's entitlement to preliminary protection, and remanded only for correction under Rule 65(c) and Rule 65(d). It directed that the January 23 protection remain effective until a superseding compliant order enters. The City does not seek rehearing of the jurisdictional or mootness holdings.

Rehearing is warranted because the panel treated direct operational questions as substantially less burdensome substitutes without applying the deference built into content-neutral narrow tailoring. It also preserved a coercive command after concluding that the command does not give the notice Rule 65(d) requires and that the district court never exercised discretion under Rule 65(c). Those rulings create immediate consequences for recurring-event administration and merit reconsideration before mandate.

Questions Presented and Rule 40 Grounds

First, did the panel overlook that compensation operates as an objective marker of an organized presentation, while the application's direct fields then measure time, format, equipment, attendance, traffic, and site effects? Second, did the opinion effectively require the least restrictive alternative by treating several proposals as adequate substitutes without record findings that they would serve Norvale's interests as effectively? Third, may a materially indefinite injunction remain coercive after the appellate court finds violations of Rules 65(c) and 65(d)?

Panel rehearing is appropriate when the Court has overlooked or misapprehended a point of law or fact material to the outcome. The City does not repeat every argument from the appeal. It identifies the connection between the chosen trigger and the evidentiary record, the unresolved tradeoffs in the stipulated alternatives, and the legal consequence of preserving an order that lacks both an express security decision and a sufficiently detailed operative command.

Rehearing en banc is warranted if necessary to secure uniformity or address an exceptionally important question. The decision affects how local governments within the Circuit may define neutral categories for scheduled expression on shared property and how courts preserve relief while curing Rule 65 defects. The issue is not whether paid literary speech receives protection; it does. The issue is the evidentiary showing required to use compensation as one administrable indicator of a planned, organizer-controlled program.

The petition relies on the record available when judgment entered. It introduces no later permit event, amendment decision, legislative revision, or factual development. The case remains interlocutory, and the City seeks correction of the preliminary disposition rather than final adjudication of the complaint.

I. The Trigger Was Considered Apart from the Fields It Activates

The opinion recognized that a scheduled presentation can concentrate listeners and create predictable transitions, but it assessed compensation largely by asking whether payment itself predicts congestion. That is not Norvale's theory. Compensation identifies an appearance formally arranged and supported by an organizer. The application then requests the operational facts used to plan it: time, location, format, equipment, expected attendance, site configuration, loading, traffic, and emergency contacts. JA15–29.

An administrable trigger need not duplicate the ultimate risk measure. A city may define a category that reliably identifies planned activity and then examine facts within that category. Paid status avoids asking employees to determine from content whether an informal table conversation has become an audience address. It is known to the organizer, verifiable at filing, and independent of viewpoint or anticipated popularity.

The record connects that process to Cedar Commons. The park sits beside transit boarding areas, a curb used for loading, and a service entrance; the central route narrows near a fountain. Prior events produced ordinary but relevant listener movement, unloading delay, and encroachment by seller materials. City witnesses described comparing schedules and reservations before assigning personnel and site conditions. JA23–33, JA44–64.

The panel concluded that direct information is available without the paid trigger. But every direct-information system still needs a definition of covered presentations and a time for submission. The opinion did not explain why Norvale's neutral line burdens substantially more expression than necessary when coupled with written, operational constraints.

II. The Alternatives Were Not Proved Equally Effective

The stipulated chart identifies possible approaches: cover every planned audience presentation, use attendance or physical thresholds, ask direct operational questions, streamline same-slot substitutions, and assess costs for documented services. JA88–92. The City agreed these were conceivable policy choices. It did not stipulate that each was equally effective, equally administrable, or free of new discretion.

An attendance threshold may rely on uncertain estimates and may not show when an audience will concentrate. A presentation-only trigger requires officials to decide which conversations count, potentially inviting subjective judgments the payment line avoids. A same-slot change may preserve time and location while altering equipment, duration, expected audience, or transition needs. Cost accounting for every individual file may consume more resources than a standardized schedule.

Billups v. City of Charleston, 961 F.3d 673 (4th Cir. 2020), requires evidence connecting a burden to significant interests and serious consideration of substantially less restrictive alternatives. It does not transform a list of possibilities into a governmental duty to select the court's preferred combination. Narrow tailoring allows some underinclusion and overinclusion and does not demand the least restrictive means.

The legislative history, parks and police declarations, site exhibits, pilot files, and hearing testimony supplied the required connection. JA23–33, JA49–64, JA93–114. At most, the record presented a disputed fit appropriate for merits development. It did not clearly establish that the Guild was likely to invalidate the process before any completed application or substitution had been denied.

III. Amendment and Fee Analysis Needs Reconsideration

The opinion found meaningful uncertainty because the ordinance does not guarantee approval of a late replacement or set a response deadline. The process nevertheless confines decisions to documented crowd, traffic, emergency, sanitation, competing-use, and municipal-resource grounds and requires written reasons. It prohibits viewpoint discrimination and permits a general topic. Those standards allow prompt judicial review of any concrete misuse. JA15–22.

Guild witnesses showed that some authors confirm late. They did not identify a completed same-time, same-format substitution that the City rejected, a request delayed beyond an event, or a topic examined for ideological acceptability. JA34–48. The panel inferred likely suppression from an untested process even though preliminary relief requires a clear showing, not a possibility that administration may become unlawful.

The fee ruling presents a related problem. Norvale identified intake, routing, site review, departmental coordination, written decisions, schedule comparison, and audience-transition planning as the work funded. The pilot time records group tasks rather than allocating minutes to each speaker. JA15–33, JA49–53. A fixed schedule necessarily averages files with different demands; it need not operate as a retrospective invoice to remain administrative.

The Guild's projected \$510 for six speakers and \$3,060 over six dates affects its budget. JA34–43. But the record contains no finding that receipts fund unrelated programs, exceed aggregate administrative costs, or vary by message. Economic effect alone should not establish likely invalidity of a neutral, cost-directed schedule.

IV. The Remaining Preliminary Factors Follow the Merits Error

The panel correctly recognized that a lost author program may be irreparable. It overlooked how the absence of probable unlawfulness changes the analysis. No speaker or topic was prohibited, no viewpoint inquiry occurred, no complete permit was denied, and later amendments remained available. The City could impose a condition only through written operational reasons. Those facts materially reduce the likelihood of imminent expressive loss.

Norvale's injury was also understated. Municipal staff must compare reservations, preserve routes, coordinate transit and loading, and allocate personnel before each event. Once a planning interval passes, later judicial success cannot recreate it. The injunction requires employees to separate questions contained in a restrained consolidated form from similar questions permitted under general park authority, creating inconsistent administration and contempt risk.

The peaceful event history does not eliminate those responsibilities. A listener transition narrowed a walkway, seller materials approached a service route, a van briefly affected unloading, and two minor medical responses required access. JA30–33, JA44–64. These were manageable events, which demonstrates the value of preparation rather than the absence of governmental interest.

The public interest includes protected literary programming and reliable use of shared public property. A content-neutral process with written reasons and a viewpoint prohibition serves both unless its burden is shown excessive. Because the tailoring analysis set the wrong baseline, the conclusion that equity and the public interest favored a broad restraint should be reheard as well.

V. A Defective Command Should Not Remain Coercive

The opinion held that the January 23 order does not satisfy Rule 65(d). Its operative text restrains “enforcement” of a combined enactment while preserving broad subjects—including traffic, capacity, emergency access, layout, competing uses, and material changes—that overlap with the ordinance's application fields. Employees cannot determine from the command which requests or conditions expose them to contempt. JA115–124.

The opinion also held that the district court failed to make an express security determination under Rule 65(c). The absence of quantified loss might support a nominal amount or waiver, but only after an exercise of discretion. The City does not ask the Court to impose a substantial bond on protected activity. It asks that coercive relief satisfy the rule when it operates.

Despite both defects, the judgment leaves the existing order in force until a superseding order enters. *Pashby v. Delia*, 709 F.3d 307 (4th Cir. 2013), permits corrective remand where warranted protection can remain, but it does not require preservation of an operative command too indefinite to obey. The panel should distinguish continuation of substantive protection from continuation of defective terms.

A short transition order written by this Court could identify restrained fees, identity demands, and viewpoint uses while preserving direct logistical authority. Alternatively, vacatur could be delayed briefly while the district court acts. Either course would provide notice. Leaving the existing language coercive without a definite endpoint beyond “prompt” correction perpetuates the very Rule 65(d) injury the opinion recognizes.

VI. Exceptional Importance and Requested Relief

The tailoring question matters whenever government uses an objective proxy to identify organized expression for neutral site management. Requiring the trigger itself to measure every ultimate concern may encourage subjective predictions about audience or content. Clarification can preserve *Billups*'s evidentiary rigor without turning it into a least-restrictive-means rule.

The remedial issue is equally important: persons exposed to contempt need notice when an appellate court finds an injunction insufficiently specific yet maintains it pending correction. Rehearing can identify the temporary wording, duration, or district deadline appropriate when entitlement survives but Rules 65(c) and 65(d) are unmet.

The City asks the panel to withdraw the June 18 disposition and reverse preliminary relief, or at least vacate the operative command and remand for a new determination. If panel rehearing is denied, the full Court should consider the questions presented. The City does not contest jurisdiction or recurring-event mootness, deny protection for paid literary speech, or seek final judgment on the complaint.

Conclusion and Certificates

The petition is timely on July 2, fourteen days after judgment. Counsel certifies compliance with the governing form, length, and service requirements; no sealed personal information appears. Electronic service was completed through the filing system. For the reasons stated, the City respectfully requests panel rehearing and rehearing en banc.